

110	Hernandez vs. Resource Employment Solutions, LLC 2019-01084740	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Raymundo Hernandez and Adela Hernandez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a fully executed Second Amended Joint Stipulation and Settlement Agreement and a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 7/19/2019, Plaintiff Raymundo Hernandez, individually and on behalf of other persons similarly situated, filed a class action complaint against Defendants Resource Employment Solutions, LLC (“RES”) and Houdini, Inc. (ROA #2.) The complaint alleged 5 causes of action for: 1. Failure to Pay Wages; 2. Failure to Provide Meal Periods; 3. Failure to Timely Pay Wages at Termination/Separation; 4. Failure to Provide Accurate Wage Statements; and 5. Violation of Unfair Business Practices Act – Bus. & Prof. Code §§ 17200, et seq On 9/23/2019, Plaintiff filed the first amended complaint (FAC) adding a cause of action for PAGA penalties. (ROA #13.) Defendant Houdini moved to compel arbitration. (ROA #37.) On 10/12/2021, after several pandemic-related continuances, the Court denied the motion. (ROA #142.) On 4/14/2022, Plaintiff filed the operative second amended complaint (SAC) adding Defendant Resource Employment Solutions II California, LLC (“RES II CA”) to the action and a cause of action for failure to provide paid rest periods. (ROA #177.) On 3/13/2023, the Court took notice that two other matters are related to this action: (1) <i>Villagomez v. Houdini, Inc.</i>, Case No. 2020-01140694; and (2) <i>Adela Hernandez v. Houdini, Inc.</i>, Case No. 2021-01212206. (ROA #198.) The <i>Villagomez</i> case settled separately, and on 8/29/2023, the Court entered an order dismissing that case without prejudice. (ROA #284 in 2020-01140694.) The <i>Adela Hernandez v. Houdini</i> case commenced the action against Houdini and Resource Employment Solutions II California,
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